

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephanie Mleczkowski	Team: Squad #15	CCRB Case #: 201411524	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 11/12/2014 11:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/12/2016	Precinct: 71		
Date/Time CV Reported Thu, 11/13/2014 12:44 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 11/13/2014 12:44 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT John Addeo	1350	945458	071 PCT
2. POM Michael Gonzalez	14118	943313	071 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Charles Arnone	03642	950021	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT John Addeo	Abuse: Sgt. John Addeo authorized the questioning of § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . SGT John Addeo	Abuse: Sgt. John Addeo threatened § 87(2)(b) with the use of force.	B . Unsubstantiated
C . SGT John Addeo	Abuse: Sgt. John Addeo threatened to arrest § 87(2)(b)	C . Unsubstantiated
D . POM Michael Gonzalez	Abuse: PO Michael Gonzalez threatened to arrest § 87(2)(b)	D . Complainant Uncooperative
E . SGT John Addeo	Discourtesy: Sgt. John Addeo spoke rudely to § 87(2)(b)	E . Unsubstantiated

Case Summary

On November 12, 2014, at 11:30 p.m., § 87(2)(b) and his friend, § 87(2)(b) had just exited § 87(2)(b) home, § 87(2)(b) in Brooklyn. Prior to exiting, § 87(2)(b) and § 87(2)(b) admitted to drinking alcohol. They were about to walk to a corner store at Franklin Avenue and Eastern Parkway to purchase lottery numbers for the following day. Then, a gray unmarked police car pulled up next to the men containing three officers, identified via investigation as Sgt. John Addeo, PO Charles Arnone and PO Michael Gonzalez of the 71st Precinct.

Sgt. Addeo allegedly requested their identification (**Allegation A**) and all of the officers then exited the vehicle. Sgt. Addeo approached § 87(2)(b) while PO Arnone and PO Gonzalez approached § 87(2)(b). § 87(2)(b) showed his identification to Sgt. Addeo and asked him why they were being detained and Sgt. Addeo allegedly replied, “I can slam your fucking head against the car if I want to” (**Allegation B**). Sgt. Addeo then allegedly threatened to arrest § 87(2)(b) for public intoxication (**Allegation C**).

PO Gonzalez allegedly asked § 87(2)(b) where he lived and what he was doing on the street (within **Allegation A**). PO Gonzalez then allegedly threatened to arrest § 87(2)(b) for public intoxication (**Allegation D**). As Sgt. Addeo was returning to his vehicle, unprompted, he allegedly said to § 87(2)(b) “Fuck that de Blasio shit” (**Allegation E**). The officers entered their vehicle and left the incident location. No summonses were issued for this incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation § 87(2)(b)

As of May 20, 2015, which is past the 90-day filing deadline, § 87(2)(b) and § 87(2)(b) had not filed a notice of claim in regards to this incident (Board Review 8).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the third CCRB complaint filed by § 87(2)(b) (Board Review 1). § 87(2)(b)
- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 1).
- Sgt. Addeo has been a member of the service for seven years and there are no substantiated allegations against him. In case numbers 201405469 and 201009096,

discourtesy allegations that were pled against him were closed by the Board as unsubstantiated. In case number 201200105, a threat of force allegation that was pled against him was closed by the Board as unsubstantiated.

- PO Gonzalez has been a member of the service for eight years and there is one substantiated allegation against him. In case number 201212490, an abuse of authority: stop of person allegation was substantiated against him. The Board recommended a Command Discipline in regards; however the NYPD took no disciplinary action in regards.

NYPD Documentation

71st Precinct Roll Call

The aforementioned documentation for November 12, 2014, Tour 3 lists that Sgt. Addeo, PO Arnone and PO Gonzalez were assigned to the Street Narcotics Enforcement Unit (Board Review 7).

Potential Issues

On November 17, 2014, § 87(2)(b) provided a telephone statement to the CCRB (Board Review 3). § 87(2)(b) scheduled a CCRB interview for November 19, 2014, which he failed to attend without any prior notice to Inv. Wurtzel. On November 20, and December 1, 2014, Inv. Wurtzel mailed § 87(2)(b) please call letters, which have not been returned to the CCRB by the United States Postal Service as of the date of this report. On November 20, 24, 25, and 26, 2014, Inv. Wurtzel called § 87(2)(b) and left him voice messages. As of the date of this report, § 87(2)(b) has not contacted the CCRB in order to reschedule a sworn statement.

Finding and Recommendations

Identification of Subject Officer

Sgt. Addeo admitted that he solely spoke with § 87(2)(b) during this incident. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) described the officer who threatened to arrest him as a Hispanic man, weighing 220 pounds, 5'9"-5'10" tall and uniformed. § 87(2)(b) could not further describe him. According to PO Gonzalez's NYPD Single Officer Photograph, he is a Hispanic man, 6'2", weighing 300 pounds, with a heavy build (Board Review 9). PO Gonzalez was the only Hispanic officer at the scene. § 87(2)(g)

§ 87(2)(g)

Allegation A- Abuse of Authority: Sgt. John Addeo authorized the questioning of § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Addeo requested his and § 87(2)(b)'s identification, while § 87(2)(b) alleged that all of the officers requested their identification. § 87(2)(b) alleged that PO Gonzalez asked him where he lived and what he was doing on the street at that time of evening.

Sgt. Addeo denied requesting § 87(2)(b) identification and denied speaking with § 87(2)(b). § 87(2)(b) Sgt. Addeo noted that PO Gonzalez and PO Arnone did not request § 87(2)(b)'s

identification. PO Gonzalez stated that he did not hear Sgt. Addeo request § 87(2)(b) identification. PO Gonzalez stated that he asked § 87(2)(b) what he was smoking; however he could not recall § 87(2)(b)'s response. PO Gonzalez admitted that he requested § 87(2)(b)'s identification once, which he refused to provide. PO Arnone stated that he did not request any of the civilians' identification and he did not know if PO Gonzalez or Sgt. Addeo did so. PO Arnone stated that PO Gonzalez asked § 87(2)(b) "How is your day going? Where are you headed?"

PO Arnone and PO Gonzalez stated that prior to approaching the civilians and while within their vehicle, they smelled marijuana within the immediate vicinity of § 87(2)(b) and § 87(2)(b). All of the officers testified that when § 87(2)(b) saw the officers within their vehicle, he threw an object from his hand, which landed on the ground. Sgt. Addeo stated that smoke emanated from § 87(2)(b)'s mouth prior to this action and described the thrown object as cigarette, whose packaging he was unable to describe; PO Gonzalez described the thrown object as a white cigarette wrapper and PO Arnone was unable to describe the object. PO Gonzalez was ten feet away from § 87(2)(b) when he made this observation. Sgt. Addeo stated that he did not smell a narcotics odor in the vicinity of the civilians.

In order to exercise the common law right of inquiry, an officer must have founded suspicion that criminal activity is afoot. People v. DeBour, 40. N.Y. 2d 210 (1976) (Board Review 11).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED] it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B- Abuse of Authority: Sgt. John Addeo threatened § 87(2)(b) with the use of force.

Allegation C- Abuse of Authority: Sgt. John Addeo threatened to arrest § 87(2)(b)

Allegation E- Discourtesy: Sgt. John Addeo spoke rudely to § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) alleged that Sgt. Addeo told § 87(2)(b) “I can slam your fucking head against the car if I want to” and “Fuck that DeBlasio shit.” § 87(2)(b) alleged that Sgt. Addeo threatened to arrest him for public intoxication.

Sgt. Addeo denied using the alleged profanity and threatening to arrest and use force against § 87(2)(b). PO Gonzalez stated that he did not hear Sgt. Addeo make the alleged statements. PO Arnone did not hear Sgt. Addeo use the alleged profanity and he could not recall if Sgt. Addeo threatened to arrest § 87(2)(b).

§ 87(2)(g)

As such, it is recommended that **Allegations B, C and E** be closed as **unsubstantiated**.

Allegation D- Abuse of Authority: PO Michael Gonzalez threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that PO Gonzalez threatened to arrest him and § 87(2)(b) for public intoxication. § 87(2)(b) did not raise this allegation against PO Gonzalez; he explicitly stated that Sgt. Addeo threatened to arrest him. The investigation exhausted contact attempts by telephone and the United States Postal Service to § 87(2)(b) however § 87(2)(b) did not contact the CCRB in order to schedule a sworn statement.

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **victim uncooperative**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date